1. THE STATE **HCBCR 633/26**

versus

HARDSON NDLOVU

2. THE STATE **HCBCR 121/26**

Versus

ALFRED SIYAPUNGA

HIGH COURT OF ZIMBAB WE
MUTEVEDZI & NDLOVU JJ
BULAWAYO, 21 APRIL 2026

Criminal review judgment

MUTEVEDZI J: The two records of proceedings were placed before me for automatic review in terms of section 57 of the Magistrate Court Act ("the MCA"). I decided to review them together because the issues which arise in both are similar.

[1] In respect of the first record, the accused, *Hardson Ndlovu*, appeared before a regional magistrate's court at Gwanda charged with Rape as defined in section 65 as read with section 64(2) of the Criminal Law (Codification and Reform) [*Chapter 9:23*] ["the CODE"].

[2] The summarised allegations were that on a date unknown to the prosecutor but during the period extending from January 2025 to 7 November 2025 at Johnsly, West Nicholson, he unlawfully had sexual intercourse several times with the complainant, a female juvenile aged 13 years who at law is deemed incapable of consenting.

[3] The accused denied the allegations and the matter proceeded to trial. At the end of trial, the trial magistrate concluded that *"the conduct of the complainant on how the sexual intercourse occurred shows that she did consent and was capable of giving that consent as and when they engaged in sexual intercourse."* In the end, the accused was found

guilty of the competent verdict of having sexual intercourse with a child as defined in s 70 of the CODE. The trial court sentenced the accused as follows: -

> "3 years imprisonment of which … is suspended for 5 years on condition the accused does not within that period commit an offense of sexual offence is an element for which upon conviction he will be sentenced to imprisonment without the option of a fine." (sic).

[4] Two issues arose from the conviction which necessitated my raising a query with the trial magistrate. The first was that, there was no indication from the record of proceedings as to what happened to the charge of rape with which the accused had initially been charged. The second was that there was no description of what it is that informed the trial magistrate that the victim understood the nature of sexual intercourse for the court to arrive at the conclusion that she was capable of giving consent and indeed gave her consent to the intercourse.

[5] In her response, and as will be demonstrable below, the trial magistrate appeared not to appreciate my concern regarding what had happened to the charge of rape when the accused was convicted of the competent verdict. Regarding the second issue, she explained it as follows: -

> "The charge of rape could not be sustained by evidence led on record after the court made a finding that there was consensual sexual intercourse between the accused and the child victim hence the conviction on the competent verdict.
> The court in its reasons for judgment opined that the credibility of the complainant was questionable given she did not give a report voluntarily. The complainant is aged 13 years and in terms of s 64(2) of the Code is deemed incapable of consenting to sexual intercourse unless there is evidence that she was capable of consenting. The court again opined that she properly consented looking at the evidence led that she did not give a report voluntarily. Evidence led is that her grandmother asked her about the issue and she never disclosed until such a time that accused was seen jumping over the fence from seeing her. Her conduct of keeping love relationship a secret is indicative that she appreciated that she was expected to be engaging in it but did so secretively. Had it been that she was openly admitting to the love relationship she had with the accused, direct evidence would have been elicited from her to prove if she understood what sexual intercourse is and the consequences therein "

[6] As for the second record of proceedings, the offender, *Alfred Siyapunga,* was also arraigned before a Regional Magistrate at Kwekwe charged with Rape in contravention of s 64(1) as read with s 65 of the CODE. The prosecution alleged that on 12 December 2025 and at Village 12 Moyo Range, Kwekwe the accused had sexual intercourse with a female juvenile aged 13 years who at law is incapable of giving consent. Her birth certificate indicated that the child was 13 years 1 month 19 days old at the time of the commission of the offence. She was therefore below the age of 14 years but above the

age of 12 years. The proper citation of the charge ought to have been 'contravening s 64(2) as read with s 65 of the CODE' and not contravening s 64(1) like was alleged in this case. The difference between the two provisions was explained by NDLOVU J in *S* v *Promise Moyo* HB55-25 where he held that: -

> "Section 64(1) deals with young people under the age of 12 years who are, at law, incapable of consenting to a sexual act, while section 64(2) deals with young people who are aged between 12 years and 14 years and are at law deemed incapable of giving consent to a sexual act."

[7] While the prosecution got the statutory citation wrong, the body of the charge was correctly formulated. The brief allegations were that during the month of November 2025 and at Village 12 Moyo Range, the offender proposed love to the complainant and she accepted. A few days later, the two went into the offender's maize field and had consensual intercourse once. Thereafter, they had sexual intercourse two more times on different occasions but at the same place. The complainant's brother discovered the escapades resulting in the matter being reported to the police and the arrest of the offender.

[8] The trial court convicted the offender on his own plea of guilty. It sentenced him as follows: -

> "5 years imprisonment."

[9] On reviewing the proceedings, I was concerned with a number of issues which I indicated in a query directed to the trial magistrate. It read as follows: -

> "The offender was convicted of raping a 13-year-old girl in contravention of s 65(1) arw s 64(2) of the Criminal Law Code. He pleaded guilty to that charge. One of the defences that an accused can raise when charged with that crime is that the victim was capable of giving consent and indeed gave such consent to the intercourse. In explaining the essential elements of the crime to the accused who was unrepresented at trial, did the trial magistrate make him aware of the available defences? Did the accused appreciate what it was that he was pleading guilty to?
> If the conviction is supportable, was the rape not committed in aggravating circumstances particularly if regard is had to the age of the complainant; that the victim ended up pregnant and that the offender is twice the victim's age and is a married man. If the crime was aggravated, was it appropriate to sentence the offender to only 5 years imprisonment?"

[10] In her response the trial magistrate stated the following: -

> "I acknowledge, and sincerely regret, that l did not clearly explain to the unrepresented accused that he potentially had a defence available to him. My apologies for this oversight. I mistakenly assumed that, since he was aware the complainant was 13 years old, he ought to have known she was too young to engage in sexual intercourse.
> In my assessment, I considered the absence of physical force to be a mitigating factor and the fact that the victim consented to the intercourse though she lacked capacity to do so. However, l now recognize that l erred by failing to properly weigh the significant age disparity and the fact of pregnancy, both of which are aggravating circumstances. I accept that l overemphasized the mitigating aspects of the case."

[11] I turn to deal with the first issue which l raised in the case of *Hardson Ndlovu*. An accused may only be convicted of a competent verdict where there is no evidence to sustain the main charge. The law is that where an accused person has pleaded to a particular charge, he or she is entitled to a verdict. That law is provided for under s 180 (6) of the Criminal Procedure and Evidence Act [Chapter 9:07] (the CPEA) which is couched as follows:

> "Any person who has been called upon to plead to any indictment, summons or charge shall, except as is otherwise provided in this Act or in any other enactment, be entitled to demand that he either be acquitted or found guilty by the judge or magistrate before whom he pleaded." (emphasis added)

[12] What the above provision entails is that a court cannot simply abandon a charge to which an accused has pleaded without making a pronouncement on it. It must find the accused, either guilty or not guilty on that charge. In this case, like I pointed out earlier, the trial magistrate remained oblivious of this fact even after I had directed her to it. She was required to pronounce a verdict of not guilty and acquitted of the charge of rape once she had determined that the evidence was insufficient to prove that charge beyond reasonable doubt. A competent verdict can only be returned following an accused's acquittal on the main charge. The correct formulation of the verdict ought to have been *"Not guilty and acquitted of the charge of rape but guilty of the permissible verdict of having sexual intercourse with a child as defined in s 70 of the CODE."*

[13] The second issue, which is apparent in both records of proceedings, stems from the formulation of s 64(2) of the CODE which provides that:

> "A person accused of engaging in sexual intercourse, anal sexual intercourse or other sexual conduct with a young person above the age of twelve years but of or below the age of fourteen years shall be charged with rape, aggravated indecent assault or indecent assault, as the case may be, and not with sexual intercourse or performing an indecent act with a young person or sodomy, unless there is evidence that the young person-
>
> (a) was capable of giving consent to the sexual intercourse, anal sexual intercourse or other sexual conduct, and
> (b) gave his or her consent thereto."

[14] The above provision deals with the distinction between children below the age of twelve years who in terms of s 64(1) are **irrebuttably** incapable of consenting to sexual intercourse and those above the age of twelve but below the age of fourteen years who are protected by a **rebuttable** presumption that they cannot consent to sexual intercourse. The phrase rebuttable presumption in this sense, means that the law

assumes that the child is incapable of agreeing to having sexual intercourse but the accused person may present evidence to the contrary. In other words, an accused charged with that crime is permitted to adduce evidence to show that the young girl was capable of giving her consent and that in the circumstances, she indeed gave her consent.

[15] For any trial magistrate, it must therefore occur that the stipulation of the law necessarily obliges him/her to explain to an unrepresented accused person, the availability of the defences accruing from that provision. An unrepresented accused person, cannot be expected, to be aware of the technicalities of that law. The fair trial rights of a person charged with a criminal offence require a magistrate to level the playing field, so that as far as is possible, the prosecution does not gain an unfair leverage over the litigant. Further, a court dealing with an offence in terms of s 64(2) must not treat it as straight-jacketed as a charge under s 64(1) of the CODE. Where an accused admits sexual intercourse after being charged under s 64(1), he cannot raise consent as a defence to fend off a charge of rape. But he is allowed to raise the argument that sexual intercourse was consensual under s 64(2). That provision places a reverse onus on him to prove, on a balance of probabilities, not only that the girl was capable of giving consent but that she indeed gave her consent.

[16] The considerations which can be used to gauge a young girl's capacity to give consent will obviously depend on the circumstances of each case. Some of the critical ones may however include the child's appreciation of the nature of sexual intercourse. That appreciation and understanding do not begin and end with the child's knowledge that sex involves a man on one hand and a woman on the other. It must extend to her appreciation, of the consequences of sexual intercourse such as the possibility of contracting venereal diseases including HIV and AIDS or becoming pregnant and its own attendant problems.

[17] Needless to state, it becomes a serious misdirection warranting interference with the proceedings where a trial court omits to explain to an unrepresented accused the above issues or proceeds to conclude that the child was capable of consenting and indeed consented, without giving any justification for it.

[18] In the case of *S v Hardson Ndlovu*, the accused completely denied any sexual contact with the child. He did not plead that the intercourse was consensual. If it had been, there would have been no reason for him not to mention it. The trial magistrate reached the conclusion that the intercourse was consensual on her own assessment. She said she concluded that the child was capable of giving consent because she (the child) had kept her relationship with the accused secretive and only disclosed it after the accused was seen jumping over a fence from seeing her. Clearly, that was an insufficient ground for that conclusion. It is not uncommon for even children below the age of twelve years to hide sexual abuse from their parents or guardians. I do not think that it is enough for a child's capacity to give consent to be inferred from what she did not do. Instead, it must be drawn from what she positively did. In this case, the child explained why she did not disclose the abuse to her grandmother. Once again, I can do no better than restate the remarks of the court in *S* v *Promise Moyo (supra)* at p.7 of the decision that: -

> "The Court must always be alive to the position of the law that, in any criminal prosecution, it is the primary duty of the prosecution to prove its case beyond a reasonable doubt. The onus is, therefore, on the prosecution to show that when the sexual act took place between the parties, the complainant (the child), who was aged above 12 years but was of or below the age of 14 years, was incapable of giving consent and did not give such consent, for section 64(2) to apply. For purposes of completeness, I reiterate that the point that the young person concerned was incapable of giving consent is a rebuttable presumption. This aspect of the law must be brought to the attention of an unrepresented accused person by the trial court before any witness, particularly the complainant testifies on behalf of the State.
> Sections 64(2) (a) & (b) of the Code are double-edged swords that can be used by either the prosecution or the defence on the one hand; the prosecution must use those provisions in interviewing the complainant and assessing her evidence before trial to ultimately decide what to charge the accused person with and what to allege as their factual matrix in their State outline. On the other hand, it is a tool at the disposal of the defence to counter the charge by establishing on a balance of probabilities that the complainant was capable of consenting to the sexual act and that she/he indeed consented to it, thereby rebutting the presumption of incapacity to give consent."

[19] What must have occurred was for the trial court to inquire from her, how much she understood the essence of sexual intercourse and its consequences. Some of the indicators I pointed out above could have been used. The accused denied the allegations. He denied having any sexual contact with the complainant. He indicated that the allegations were fabricated by the complainant's grandmother after he had asked for his money, which he had lend her. To prove its case, the prosecution called the complainant to testify. She was 13 years old at the first time of the alleged

commission of the offence. It was alleged the sexual intercourse occurred from sometime in January 2025 to 7 November 2025. From her evidence, the complainant said the accused person would threaten her with a knife before having sexual intercourse with her. Thereafter, he would threaten to kill her or her grandmother if she reported the sexual abuse. She denied consenting to sexual intercourse with the accused during the six or eight occasions. When she was asked how the offence came to light, the dialogue was recorded as follows:

> "Q. How did your grandmother come to know of this?
> A. There are these people who saw us on Friday, the last day when the accused **raped** me. They advised my grandmother and these other police officer, whom l refer to as my brother."[own emphasis]

She then said the accused ran away when they were seen by these people.

[20] Under cross examination, the complainant was adamant that the accused had sexually abused her several times whilst wielding a knife. To me, she was clearly a credible witness whose version of events remained consistent. I appreciate that findings of credibility of witnesses were preeminently the domain of the trial court. But the finding that the complainant was not a credible witness in this case was divorced from the evidence on record. With the narration of events as stated above, I struggled to see how the trial magistrate concluded that the complainant was capable of giving consent. Even if she had been, it is outrageous to accept that she gave her consent when she said sexual intercourse had taken place with the accused person not only pointing a knife at her but also threatening to kill both her and her grandmother if she ever revealed the abuse. Consent to sexual intercourse is not a difficult concept. To me, a common-sense approach may even explain it. It is a voluntary and conscious agreement to engage in a specific sexual activity where the person has both the freedom and capacity to choose. It is not present where a child is threatened to engage in it both before and after the act.

[21] I have already revealed that when l raised the query with her, the trial magistrate pointed at the girl's failure to report the sexual abuse as an indication that the complainant was in a love relationship with the accused and that she had consented to the sexual acts. I have also stated that, even if she had consented, there is no evidence that she was capable of giving that consent. It is not apparent from the proceedings. It is not in the reasoning of the trial court. From the evidence, the complainant did not consent and she appeared incapable of consenting. Clearly therefore, the accused ought

to have been convicted of the charge of rape and not the competent verdict of having sexual intercourse with a child.

[22] In the case *S* v *Alfred Siyapunga,* the trial magistrate conceded that she had not made any attempt to explain to the unrepresented accused, the defences which may have been available to him. She said her assumption had been that since the accused was aware that the complainant was 13 years old, he ought to have known that she was too young to engage in sexual intercourse. Clearly, the trial court started from a wrong premises because children in the category in which the complainant was in this case may, in appropriate cases be shown to have the capacity to consent to sexual intercourse. I earlier on set apart the below twelve years category from the above twelve but below fourteen years group. It may be important to restate, for completeness, that where an accused has sexual intercourse with a girl above the age of twelve but below the age of fourteen years, prosecution must prove that the girl was not capable of giving consent and that she did not consent. Where that is successfully done, the accused is liable to a conviction for rape. Where an unrepresented accused person pleads guilty to the charge of rape in such circumstances solely on the basis of the child's age but the court does not explain to him that the law permits him to demonstrate that the child had capacity to give consent and indeed consented, the conviction is unsupportable. A court proceeding to record a guilty plea in terms of s 271(2)(b) of the CPEA has a duty to ensure that the accused admits not only to having sexual intercourse with the child but that he did so, fully aware that the child was incapable of giving the consent and that she had not consented. Those issues may be ascertained through the routine of question and answer which is usually employed under that procedure. Alternatively, a court may resort to the use of s 271(4) of the CPEA, which allows the adduction of evidence to prove that narrow issue.

[23] In this case, neither of the methods was used. In the end, the accused was convicted as if he had been charged with a contravention of s 64(1) which proscribes having sexual intercourse with children below the age of twelve years.

Disposition

[24] As already demonstrated, in *S* v *Hardson Ndlovu,* the accused was charged with rape in contravention of s 65(1) of the CODE. The charge was not dependent on s 64(2). Unlike in the case of *Alfred Siyapunga*, the court had no obligation to explain to him the defences available under s 64(2). The State clearly managed to prove beyond reasonable doubt, that the complainant child **did not consent** to sexual intercourse. To me, the evidence on record was enough to sustain the charge of rape as defined in s 65 (1). The conviction of the accused on the competent verdict of contravening s 70 of the CODE was wrong in the face of the irrefutable evidence on record that the complainant did not consent. I cannot confirm the proceedings to be in accordance with real and substantial justice.

[25] In the case of *S* v *Alfred Siyapunga*, I demonstrated above, the omissions committed by the trial court. In the end I am not satisfied that the accused genuinely pleaded guilty to the charge which he was facing. The trial court did not fully explain the essential elements of the charge. That amounts to a gross irregularity in the proceedings once again warranting this court to interfere with the conviction.

[26] The next question is therefore what to do with each of the two sets of proceedings. The case of *Hardson Ndlovu* is more complicated. I have already said the evidence left no doubt that he was guilty of rape. The court aquo did not return any verdict on that charge. Instead, it erroneously concluded that he was guilty of the lesser charge of having sexual intercourse with a child. The issue which arises is therefore whether or not the law permits a judge on review, to substitute a verdict of guilty of the more serious charge of rape for the lesser crime with which the accused stands convicted. I am convinced that such substitution is permissible. My view finds credence not only in s 29(2)(b)(i) and (iii) of the High Court Act [Chapter 7:06] but also from a number of decisions of this court. The provision is couched as follows: —

> (2) "If on a review of any criminal proceedings of an inferior court or tribunal, the High Court considers that the proceedings —
>
> (a) …
>
> (b) are not in accordance with real and substantial justice, it may, subject to this section
>
> (i) …

(ii) …

(iii) set aside or correct the proceedings of the inferior court or tribunal or any part thereof or generally give such judgment or impose such sentence or make such order as the inferior court or tribunal **ought in terms of any law to have given, imposed or made** on any matter which was before it in the proceedings in question. (my emphasis).

[27] The above was aptly interpreted in the case of *S v Hove* 1981 ZLR 610 (H) at 612A-B where GUBBAY J (as he then was) observed that: —

> "In reviewing criminal proceedings of an inferior court, this court is empowered by s 29(2)(b)(i) and (iii) of the High Court of Zimbabwe Act of 1981 (now the High Court Act [Chapter 7:06] to alter or correct a verdict, even if it involves **substituting a conviction for a more serious offence in lieu of one for a less serious offence,** provided that all the ingredients of the more serious offence were clearly set out in the charge."

[28] The issue was further developed in the case of *S v Sabawu & Anor* 1999(2) ZLR 314 (H), where CHATIKOBO J not only approved the holding in *S v Hove* (supra) but added that the condition precedent to the substitution of a verdict of guilty of a more serious charge for a lesser offence is that the more serious offence must have been initially charged or at the very least its ingredients ought to have been clearly set out in the charge the accused answered to. More recently, MUSHURE J followed that course in the case of *S v Munyaradzi Ronde* HH329-24. I fully associate myself with all the above authorities. I equally read the provision to meant that where an accused is charged with a more serious offence but the trial court finds him/her guilty of a lesser offence in circumstances where the evidence demonstrates that the accused is guilty of the more serious offence, subsections (2)(b)(i) &(iii) of s 29 of the High Court Act, allow a judge to quash the conviction on the lesser charge and substitute it with one on the more serious crime. The logic of that is not difficult to follow. The provision allows the High Court to 'give such judgment or make such order as the inferior court **ought in terms of any law to have given, imposed or made** on any matter which was before it in the proceedings in question.' A reviewing judge must therefore simply consider whether or not the inferior court had power to return a verdict of guilty for the more serious crime. The converse of this situation may possibly put the issue into better context. Had the accused in this case been initially charged with the crime of contravening s 70 of the CODE, (that is having sexual intercourse with a child) and he had been found guilty on that charge but the evidence overwhelmingly proved that he was guilty of the more serious charge of rape, it

would not have been possible for this court to substitute the trial court's verdict with a more serious one. It is so, because the trial court could not possibly have found the accused guilty of rape. Here, the accused was charged with rape. The court aquo ought to have found him guilty of that charge. The conditions precedent to the substitution of a conviction for a less serious crime with a more serious one are therefore ripe. I am permitted to replace the court aquo's verdict of guilty of contravening s 70 with one of guilty of rape.

[29] Regarding sentence, in some instances, where a verdict of guilty of a more serious crime supplants that of a lesser one, it may not be possible to alter the sentence to reflect the more serious offence. It is particularly so, where the sentence imposed is legally competent. Paragraph (ii) to the proviso to subsection (2) (b) of s 29 regulates that. For a reviewing judge to be able to interfere with the sentence where the conviction is altered to a more serious charge, it must therefore be shown that the sentence imposed is incompetent. In this case, the sentences imposable on an offender for having sexual intercourse with a child are significantly different from those for rape. The considerations which a court must look at are entirely different. In fact, the sentencing regimes are worlds apart. Rape attracts minimum mandatory sentences at different levels depending on whether or not the rape was committed in aggravating circumstances. Just like was stated in the *Hove* case (supra), that where an offence attracts a minimum mandatory sentence, any other penalty imposed becomes incompetent, it must follow that the sentence imposed in the case of *Hardosn Ndlovu* is equally incompetent. It cannot be allowed to stand.

[30] All said and done, I can only direct as follows: -:

1. In *S* v *Hardson Ndlovu CRB NO. GNDR74/25*

a. The verdict of guilty of having sexual intercourse with a child in c/s 70 of the CODE be and is hereby set aside. In its place is substituted the verdict that: -

"The accused be and is hereby found guilty of rape in contravention of s 65(1) of the Criminal Law (Codification and Reform) Act [Chapter 9:23] as charged."

b. The sentence imposed on the accused is incompetent and is hereby set aside

c. The matter is remitted to the court *a quo* for the trial magistrate to:

(i)sentence the accused afresh on the conviction of rape taking into account the principles which inform sentencing of offenders convicted of rape.

(ii) Properly explain the essence of this judgment to the accused before embarking on the new sentencing process

2. **In *S v Alfred Siyapunga CRB No. KWR09/26***

a. The conviction be and is hereby quashed
b. The matter is remitted to the Magistrates' Court for a trial afresh before a different magistrate, in compliance with the guidelines given in this judgment.
c. For the avoidance of doubt, the sentence imposed by the court aquo on the accused stands vacated by operation of law
d. The registrar of this court is directed to immediately issue a warrant for the accused's liberation

MUTEVEDZI J……

NDLOVU J……I agree